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1930, The Special Tribunal

In one sense, an atonement is called for. The Lahore Ordinance III of 1 May 1930 was passed by Lord Irwin without being ratified by either the Central Legislative Assembly or by the Council of State. It was not an act of the Indian legislature. It was an edict passed by a single man. That man was the governor-general. It was done at a time when the Lahore conspirators were already being tried before a regular magistrate in a regular court. Their trial had been going on for ten months. Over 200 witnesses had been heard. The power of setting up a special tribunal, by virtue of the governor-general's ordinance, was a very special power to be exercised in rare circumstances only. The Imperial Parliament in London had made it subject to two specific legal restraints. First, the ordinance would be subject to a strict time-limit of six months' validity only as it was a special edict exercisable by the single person, the governor-general, with no legislative oversight. Second, the ordinance could only be invoked 'in cases of emergency' where the 'peace and good government of British India or any part thereof' was at stake. Both these conditions had to be satisfied. Otherwise, the governor-general had to act in the normal way through normal parliamentary legislation. The power was permissive. It was not mandatory. The governor-general 'may' act by way of an ordinance. Nothing directed that he had to. There was nothing in the legislation justifying the use of an ordinance procedure for the purposes of executing anyone. Such a use of power was arguably irrational because the ordinance procedure was an administrative one for 'peace and good government' and not for inflicting the death penalty. It was an 'emergency' power only. This is why Section 72 of the Government of India Act 1919 stated,